

Arbitrator's Decision on Consumer Out of Jurisdiction Appeal

Case Number: JAG2501941

Hinton v. Jaguar, #JAG2501941

The consumer appealed the previous decision in this case which denied this claim. The reason for the denial by the BBB was that the vehicle was a motor vehicle which was purchased with an unexpired manufacturer's new vehicle warranty and not one which was sold with a new car warranty issued at the time of this consumer's purchase of the vehicle. The vehicle was a used vehicle, as defined by the Song Beverly Act.

This claim was filed on or about 1/31/25 when there were 25,297 miles on the odometer. The vehicle in question is a 2020 Jaguar F-Type. The consumer purchased the vehicle used on 9/17/24 when there were 22,300 miles on the odometer. See Customer Claim Form. The vehicle was purchased with the power train warranty still in effect. That warranty had initially been issued to the original owner.

On 10/31/24, Supreme Court of California affirmed the judgment of the Court of Appeal in Rodriguez v. FCA US, LLC, stating: "We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." This ruling made it clear that there is a difference between a vehicle sold with a portion of the original warranty in place, versus a vehicle which is sold with a full new vehicle warranty issued at the time of that sale. The former is a used vehicle and not eligible for Lemon Law relief; the latter is considered a new motor vehicle for the purposes of the Lemon Law.

The consumer submitted no evidence to establish that the warranty on this vehicle was a "new" vehicle warranty issued at the time this consumer purchased the vehicle. The warranty in question is the remaining power train warranty which was originally issued to the original owner of this vehicle at the time of that owner's purchase. So, even though the manufacturer's warranty still covered this vehicle, it does not meet the Lemon Law's requirements and the Rodriguez holding's requirements as to what is necessary to qualify as a new motor vehicle. Clearly, this vehicle is a used vehicle as recently defined by the California Supreme in Rodriquez.

Since that decision was entered, the BBB Auto Line Program no longer has jurisdiction to decide any issues in California pertaining to used vehicles. Without jurisdiction, this claim cannot be resolved by the BBB. There may be other bases upon which this claim might be eligible for relief, such as perhaps the federal Magnuson-Moss Warranty Act, however, consideration of those other options is not within the purview of the California Lemon Law nor the Auto Line Program. Accordingly, the denial decision entered in this case is affirmed.

Arbitrator : Paula M Stenlund